

Petty, according to the custom of the said Court, *ad satisfaciend'*, &c. directed to the Marshal of the Marshalsea of the said household, by force whereof the said Marshal of the Marshalsea *ore tenus* commanded the said William Stanley to execute the said writ, by virtue whereof he arrested *infra virgam*, &c. the body of the said Richard Hall, and delivered him to the said William Richardson, Marshal, &c. in execution, &c. who detained him in the prison of the Marshalsea at Southwark *infra virgam* in execution, &c. The plaintiff replied and said, *quod nec præd' Rogerus Cante in placito præd' querens nec prædict' Thomas Ownstead in placito prædicto def' tempore exhibitionis billæ prædictæ, fuit servus seu servi dicti domini Regis [69 b] seu de hospitio suo præd' existen', &c.* Upon which the defendants did demur in law. And this case was often argued at the Bar, and two points were moved. 1. Whether an action upon the case upon *assumpsit* for payment of a debt being made within the verge, be within the jurisdiction of the Court of Marshalsea. 2. Admitting that it be not, then if the defendants having the warrant of the said Court, shall be punished for a false imprisonment, or not. And much was said by them who were of counsel with the Court of Marshalsea; for the antiquity, honour, and jurisdiction of the Court of Marshalsea; for the antiquity, that it is as ancient as any of the King's Courts, as appears in 4 H. 6. 8. b. and Diversity of Courts, tit. Marshalsea: for the honour, that Fleta. lib. 2. cap. 2. next after the High Court of Parliament, adds, *habet et Curiam suam coram Senescallo suo in aulâ suâ*, &c. and Britton, cap. 1. (which is in the book, spoken in the person of the King) begins with the Court of Marshalsea before any other, in these words, And that the Marshal of our Household hold our place within the verge, &c. And we will, that the Earl of Norfolk by himself or by another knight, be attendant to us and our Steward, to do our commands, and the attachments and executions of our judgments and of our steward, through the verge of our household; wherein it was also observed for the honour of the Court, that the Judges hold the King's place, and that a man of such dignity as the Earl of Norfolk, is attendant to the said Court; and they further said, that this Court was of so high a jurisdiction, that before the statute of 5 E. 3. cap. 2. and 10 E. 3. cap. 2. no writ of error lay of any judgment there given, but in Parliament: and by the same statutes their errors shall be examined and redressed in the King's Bench. And, as it appears by Fleta, this Court of ancient time, for the greater honour thereof, was held *in aulâ Regis*, within the hall of the King's honourable household.

And as to the jurisdiction, they said, that before the statute of Articuli super Chartas, cap. 3. the Court of Marshalsea had jurisdiction within the verge of pleas of the Crown or criminal causes, and of all common pleas, real, personal and mixed, and that before the said statute, the Steward and Marshal of the King's Household used to hold all the pleas aforesaid within the verge, although none of the parties were of the King's Household, and now the said Act has restrained them to three actions only, *sc.* contracts, covenants, and trespasses, and that in three distinct manners, *sc.* In contracts and covenants, when both are of the household. 2. In trespass, when either party [70 a] is of the household. 3. Of other trespasses done within the verge, when neither of the parties is of the household, and that stands with the words of the said Act, *sc.* "but only of trespass of the household, and of other trespasses done within the verge, and the contracts and covenants which any of the King's Household has made to another of the same household;" so that by express words they have power not only of trespass of the household, but also of other trespasses within the verge, and that the later words, "which any of the household, &c. have made to another of the same household," shall have relation only to contracts and covenants, and not to the clause concerning trespasses, for then these words "(and of other trespasses done within the verge)" are void; for it speaks first of trespasses of the household, and then if the later clause shall have relation to the clause of trespass, the same clause "(and of other trespasses done within the verge)" will be void & *glossa viperina est quæ corrodit viscera testis*. An they strongly relied upon an Act of Parliament made within two years after the said Act of 28 E. 1. *sc. an' (a)* 30 E. 1. not printed, but remaining in the Treasury, which is a good exposition of the said former Act; by which it is enacted, that where before the Steward and Marshal, the Court being many